

THE EMPLOYMENT ASSUMPTION

Why ADAP's Core Premise Fails Its Own Evidence Test — Policy and Legal Edition

The Alberta Disability System Breakdown • April 2026 • Free to Share

Executive Summary

The Alberta Disability Assistance Program (ADAP), scheduled to launch July 1, 2026, rests on a foundational premise: that a significant proportion of current AISH recipients possess the capacity for employment. This document demonstrates, through analysis of the Government of Alberta's own published data, program definitions, and Budget 2026 projections, that this premise is internally inconsistent, empirically unsupported, and administratively more costly than the program it replaces. Further, the absence of published assessment criteria 82 days before implementation raises serious procedural fairness concerns under Alberta human rights and administrative law frameworks.

PART I — THE INTERNAL CONTRADICTION IN PROGRAM DESIGN

1.1 The AISH Eligibility Standard

The Government of Alberta defines AISH eligibility as requiring that an applicant possess a mental or physical impairment causing substantial limitation in their ability to earn a livelihood that is likely permanent in nature. This standard has governed the program since its legislative establishment and is reflected in the AISH Act, SA 2006, c A-45.1, and the AISH General Regulation, Alta Reg 91/2007.

1.2 The ADAP Employment Premise

The Government of Alberta describes ADAP as a program designed for Albertans with disabilities who are able to work and want to enjoy the benefits of employment. The transition of all current AISH recipients to ADAP, absent individual reassessment, implicitly classifies the existing caseload as possessing employment capacity.

1.3 The Contradiction

These two positions cannot be simultaneously valid. An individual whose disability substantially and permanently limits their ability to earn a livelihood — as required for AISH eligibility — cannot simultaneously be characterized as able to work for purposes of ADAP program design. The government has not published any policy rationale explaining how the employment capacity of the existing AISH caseload has changed between the date of their eligibility determination and July 1, 2026.

WHAT THE GOVERNMENT SAYS

ADAP is designed for Albertans with disabilities who are able to work.

WHAT THE GOVERNMENT'S OWN DATA SHOWS

AISH eligibility requires a permanent condition substantially limiting the ability to earn a livelihood. 83.9% of recipients have zero employment income. (GoA Open Data, Sept 2025)

PART II — EMPIRICAL EVIDENCE FROM GOVERNMENT DATA



2.1 Government Open Data

The Government of Alberta's own AISH caseload open data for September 2025 confirms that 16.1% of the 79,290 active AISH clients had any form of employment or self-employment income. The remaining 83.9% — approximately 66,500 individuals — reported zero employment income. This data is published by Alberta Assisted Living and Social Services and is publicly available at open.alberta.ca.

2.2 Labour Market Context

The employment gap among AISH recipients is not attributable to absence of motivation but to the structural barriers documented by the Alberta Human Rights Commission, the Alberta Medical Association, Inclusion Alberta, and the Government of Canada's own disability employment research. Employers are not compelled under existing federal legislation to hire persons with disabilities — only to accommodate those already employed. The AHRC has explicitly noted that placements involving uncontrolled medical conditions and safety-sensitive roles may constitute undue hardship, further limiting viable employment sectors for a significant portion of the AISH caseload.

PART III — PROCEDURAL FAIRNESS AND THE UNPUBLISHED ASSESSMENT CRITERIA

3.1 Absence of Published Criteria

As of April 10, 2026 — 82 days before the mandated transition date — the Government of Alberta has not published the detailed medical assessment criteria that will determine individual placement in ADAP versus AISH. A Ministerial Order containing these details was promised for spring 2026. It has not been released.

3.2 Administrative Law Implications

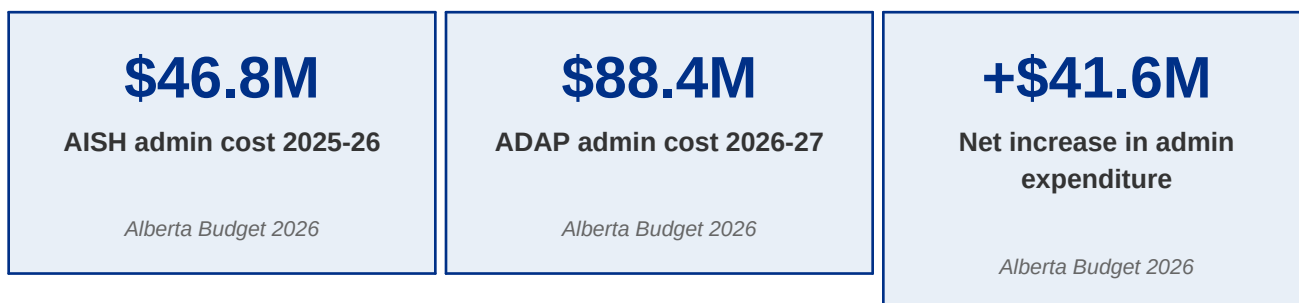
The principles of procedural fairness under Canadian administrative law require that individuals subject to government decisions affecting their economic security be provided with adequate notice and sufficient information to understand the basis on which those decisions will be made. The Supreme Court of Canada in *Baker v Canada* [1999] 2 SCR 817 established that the content of the duty of fairness is contextual and must be calibrated to the significance of the decision for the individual affected. A mandatory transition affecting the income of 79,290 Albertans with permanent disabilities meets any reasonable threshold for heightened procedural protections.

3.3 Charter Section 15 Considerations

Section 15(1) of the Canadian Charter of Rights and Freedoms guarantees equal benefit of the law without discrimination based on mental or physical disability. A program transition that imposes a mandatory employment assessment on individuals whose disability has already been determined to permanently limit their ability to earn a livelihood — without individual reassessment and without published criteria — raises

substantive equality concerns under s.15. This ground has been preserved in formal notices filed with the Alberta Human Rights Commission and the Ministry of Justice by affected recipients.

PART IV — FISCAL ANALYSIS



4.1 Budget 2026 Data

Alberta Budget 2026 documents confirm that the cost of program planning and delivery for disability income assistance is projected to increase from \$46.8 million in 2025-26 to \$88.4 million in 2026-27 — an increase of \$41.6 million, or approximately 89%. This administrative cost increase occurs concurrent with a reduction in individual benefit payments from a maximum of \$1,940 per month under AISH to \$1,740 per month under ADAP effective January 2028.

4.2 Fiscal Impact on Recipients

The net fiscal impact on individual recipients includes: a \$200 per month benefit reduction effective January 2028; a reduction in the earned income exemption from \$1,072 to \$350 per month effective July 2026; the ongoing clawback of the \$200 per month Canada Disability Benefit — Alberta being the sole province maintaining this offset; and a \$220 per month rent increase for recipients in community housing, effective October 2024. The combined effect for an AISH recipient in community housing receiving the CDB represents a potential net monthly reduction of \$620 by 2028.

PART V — CONCLUSION AND RECOMMENDATIONS

5.1 Summary of Findings

The evidence demonstrates that ADAP's employment premise is internally contradictory with the program's own eligibility architecture; empirically unsupported by the government's own published caseload data; administratively more expensive than the program it replaces; and procedurally inadequate given the absence of published assessment criteria 82 days before mandatory implementation.

5.2 Recommended Actions

- Immediate publication of full ADAP medical assessment criteria in plain language prior to July 1, 2026.
- Individual reassessment of all current AISH recipients prior to transition, consistent with the government's own stated intent of placing individuals in the program best suited to their unique situation.
- Restoration of the independent Citizens Appeal Panel removed by Bill 12 (December 9, 2025).

- Cessation of the Canada Disability Benefit clawback, consistent with federal intent and the example of all other Canadian provinces and territories.
- An independent fiscal and human rights impact assessment prior to implementation.

CITED SOURCES

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